

24VECV05734 24VECV05734

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-17

Motion: PLAINTIFFS' MOTION FOR ATTORNEYS' FEES; DEFENDANT GENERAL MOTORS LLC'S MOTION TO TAX COSTS

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Case Number: 24VECV05734 Hearing Date: July 17, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

AMHM, INC., a

California corporation; and ARMEN GHAZARYAN, an individual,

Plaintiffs,

vs.

GENERAL MOTORS LLC, a Delaware limited

liability company; CASA DE CADILLAC, a California corporation; and DOES 1-30,
inclusive,

Defendants.

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CASE NO: 24VECV05734

[TENTATIVE] ORDER RE: PLAINTIFFS' MOTION
FOR ATTORNEYS' FEES; DEFENDANT GENERAL MOTORS LLC'S MOTION TO TAX COSTS

Dept. U

8:30 a.m.

July 7, 2026

I.

BACKGROUND

This case is a lemon
law action filed by Plaintiffs AMHM, Inc. and Armen Ghazaryan against Defendants General
Motors LLC ("General Motors") and Casa de Cadillac ("Casa").

On November 19, 2024,
Plaintiffs filed their complaint against Defendants.

On January 2, 2025,
General Motors filed its answer to the complaint.

On February 19, 2025,
Casa filed its answer to the complaint.

On February 5, 2026,
Plaintiffs filed their notice of settlement of the entire case.

On March 16, 2026,
Plaintiffs filed their motion for attorneys' fees.

Also on March 16, 2026, Plaintiffs filed their
costs memorandum, seeking \$4,712.08 in litigation costs.

On March 30, 2026, General Motors filed its
motion to strike or tax costs.

On June 23, 2026, General Motors filed its
opposition brief as to the motion for attorneys' fees.

Also on June 23, 2026, Plaintiffs filed their
opposition brief as to the motion to strike or tax costs.

On June 29, 2026, Plaintiffs filed their
reply brief as to the motion for attorneys' fees.

Also on June 29, 2026, Defendants filed their
reply brief as to the motion to strike or tax costs.

II.

LEGAL

STANDARD

If a buyer-plaintiff

prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ. Code, § 1794 (d).

III.

DISCUSSION

Plaintiffs seek an award of attorneys' fees in the total amount of \$93,097.50, representing 93.1 hours of attorney time at rates between \$550.00/hour and \$750.00/hour, plus 7.3 hours of legal assistant time at \$150.00/hour, plus a 1.5 multiplier. In opposition to the motion, General Motors argues Plaintiffs should be awarded no more than \$15,977.69. Ultimately, Plaintiffs will be awarded their attorneys' fees in the reduced total amount of \$40,155.

Plaintiffs also seek the following \$4,712.08 in litigation costs: \$694.30 for filing and motion fees, \$150.00 for jury fees, \$51.63 for service of process, \$2,795.90 for witness fees, \$20.25 for fees for electronic filing or service, and \$1,000.00 for "other" fees, specified as a mediation fee. General Motors moves to tax a total of \$4,141.65 from Plaintiffs' costs memorandum. The motion to tax costs will be granted only as to \$750.00 in mediation fees. Ultimately, Plaintiffs will be awarded their costs in the total amount of \$3,962.08.

a. 65.1
hours of attorney time and 7.3 hours of legal assistant time is reasonable for Plaintiffs' counsel to have spent working on this case.

The trial court has an obligation to award only those attorneys' fees that are reasonable. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 (*PLCM Group*); see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).

Here, Plaintiffs seek an award of attorneys' fees in the total amount of \$93,097.50, representing 93.1 hours of attorney time at rates between \$550.00/hour and \$750.00/hour, plus 7.3 hours of legal assistant time at \$150.00/hour, plus a 1.5 multiplier. In opposition to the motion, General Motors argues Plaintiffs should be awarded no more than \$15,977.69.

Both sides' positions as to the amount of attorneys' fees that should be awarded in this case are not reasonable. This case

involved no motion practice (except as to fees). However, counsel conducted substantial discovery.

Plaintiffs' request

for more than 100.0 attorney/legal assistant hours is unreasonable in a lemon law case that settled and involved no motion practice (again, except for motions related to fees). The total number of hours claimed in the billing records attached to the declaration of Attorney Hovanes Margarian is excessive.

Specifically:

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Counsel claims 12.9 hours for pre-filing work in a routine lemon law case. Such basic lemon law research and consultation tasks should have taken counsel no more than 8.0 hours to complete. The Court will strike 4.9 hours from Plaintiffs' request for attorneys' fees. $(12.9 - 8.0 = 4.9.)$

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Counsel claims 57.3 hours for post-filing work, including discovery and settlement. This is excessive. Counsel should have been able to complete all tasks falling within this category of discovery and settlement activities in no more than 45.5 hours. The Court will strike 11.8 hours from Plaintiffs' request for attorneys' fees. $(57.3 - 45.5 = 11.8.)$

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Counsel claims 17.3 hours for work on the motion for attorneys' fees. Such a basic, repetitive motion should have taken counsel no longer than 6.0 hours to complete. This calculation is inclusive of time required to oppose General Motors' motion to strike or tax costs and time to attend the single hearing on both motions. The Court will strike 11.3 hours from Plaintiffs' request for attorneys' fees. $(17.3 - 6.0 = 11.3.)$

In sum, many of Plaintiffs' specific time allocations are for routine lemon law discovery practice that should not take counsel such large amounts of hours to complete. Plaintiffs' counsel appears to seek

compensation at high rates for work that has been done hundreds of times previously and which should proceed in a fraction of the hours that are being claimed.

As to the 7.3 hours billed for legal assistant time, the Court disagrees with General Motors that any of these time-allocations were unreasonably claimed.

Plaintiffs will be allowed to recover for 7.3 hours of legal assistant time.

Ultimately, 65.1 hours of attorney time and 7.3 hours of legal assistant time is reasonable for Plaintiffs' counsel to have spent working on this case. This represents a reduction of 28 attorney hours from the 93.1 attorney hours originally claimed. ($4.9 + 11.8 + 11.3 = 28$) This award is inclusive of counsel's work on the instant motion for attorneys' fees and time to attend the hearing thereon.

b. Plaintiffs will be awarded \$40,155.00 in attorneys' fees for work completed on this case. (65.1 attorney hours at \$600.00/hour + 7.3 legal assistant hours at \$150.00/hour.)

The trial court awards reasonable attorneys' fees according to the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.

Plaintiffs' counsel's declaration states that attorneys who worked on this case bill at rates between \$550.00/hour and \$750.00/hour. (See Hovanes decl., Exh. A.)

The Court has reviewed and considered the parties' arguments regarding setting reasonable rates in this case and concludes that average rate of \$600.00 is a reasonable average hourly rate for attorneys in this matter given Plaintiffs' attorneys' experience. The Court disagrees with Plaintiffs that the fact that this case was taken on contingency warrants a greater rate or a fee multiplier. The contingency risk is built into a \$600.00/hour rate. \$150.00/hour is a reasonable rate for legal assistants.

The Court will award Plaintiffs their reasonable attorneys' fees for counsel's work on this case up through and including the instant motion for attorneys' fees and the hearing thereon in the total amount of \$29,670.00. (65.1 attorney hours at \$600.00/hour + 7.3 legal assistant hours at \$150.00/hour = \$40,155.00)

c.

The motion to tax costs will be granted only as to \$750.00 in mediation fees.

Plaintiffs seek the following \$4,712.08 in litigation costs: \$694.30 for filing and motion fees, \$150.00 for jury fees, \$51.63 for service of process, \$2,795.90 for witness fees, \$20.25 for fees for electronic filing or service, and \$1,000.00 for "other" fees, specified as a mediation fee. General Motors moves to tax a total of \$4,141.65 from Plaintiffs' costs memorandum.

To be recoverable, allowable costs must be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." Code Civ. Proc., § 1033.5(c)(2).

As to filing and motion fees, General Motors argues Plaintiffs' claim is improper because notices, case management statements, and a notice of settlement are expenses that did not advance Plaintiffs' case. The Court disagrees with General Motors that such filings were not reasonably necessary to the conduct of litigation. Plaintiffs will be allowed to collect these fees paid for routine filings.

General

Motors argues Plaintiffs' claimed filing and motion fees are also improper because Plaintiffs claim \$47.34 in fees for anticipated filings of opposition and reply briefs in response to the motion for attorneys' fees and the motion to tax costs. General Motors argues

Plaintiffs should only be allowed to recover costs actually incurred. However, since General Motors filed its motion to tax costs, Plaintiffs have, in fact, filed opposition and reply briefs in response to those motions.

Thus, the fees were actually incurred.

Plaintiffs will be allowed to recover their fees for filings of opposition and reply briefs.

General Motors argues Plaintiffs should not be allowed to recover their \$150.00 in jury fees because the case did not go to trial. The Court disagrees. Plaintiffs were reasonably required to pay jury fees upfront to preserve their option for a jury trial if the case did not settle. In this Court's opinion, such costs were reasonably necessary to the conduct of litigation and are thus recoverable.

As to service of process, General Motors complains that Plaintiffs' claim for \$51.63 in costs is improper because Plaintiffs provide no documentation of who "Maddie Bright" is.

General Motors is incorrect.

Plaintiffs' proof of service indicates Ms. Bright was served as General Motors' agent for service of process. (See Proof of Service filed December 12, 2024.)

Plaintiffs are allowed to recover costs incurred for the purpose of serving Ms. Bright.

As to expert fees, General Motors argues Plaintiffs should not be allowed to recover \$2,795.90 in expert fees paid to "David Gurul" because the parties never exchanged expert discovery. However, Mr. Gurul's inspection of the vehicle appears to have been helpful in the settlement process. Had this case proceeded to trial, Mr. Gurul's inspection of the car would likely have been evidence used before a jury. The Court agrees with Plaintiffs that the expert inspection was reasonably necessary at the time it was conducted, and that Plaintiffs should be allowed to recover Mr. Gurul's fees under Civil Code section 1794 (d).

As to \$20.25 in electronic filing fees, General Motors complains that Plaintiffs fail to provide documentary evidence of these costs with their costs memorandum. However, Plaintiffs' opposition brief explains these charges were "fees for electronic filing or service of documents through an electronic filing service provider. This is not an unexplained or suspicious charge. It is a minimal, ordinary litigation expense incurred in connection with filing and serving documents in this action through the Court's electronic filing system and/or authorized electronic filing service provider."

(Opposition, p. 7:1-5.) The Court agrees with Plaintiffs that this explanation of \$20.25 in electronic filing fees is sufficient without needing to provide specific documentary

evidence of electronic service fees paid out.

As to \$1,000.00

in “Other” fees, which are designated in the costs memorandum as a “Mediation” fee, General Motors incorrectly asserts that the “Other” fees include an “AppearMe Service Fee.” (See Motion, p. 5:26-28.) Plaintiffs designate the “Other” fee identified in the costs memorandum as being comprised only of a \$1,000.00 mediation fee. The Court rejects General Motors’ position that the Court should strike the AppearMe Service Fee, as no AppearMe Service Fee has been claimed.

In

their opposition brief, Plaintiffs concede that they are only accurately entitled to $\frac{1}{4}$ of the \$1,000.00 amount claimed for mediation, i.e., \$250.00. (See Opposition, p. 9:13-19.) This is presumably because the mediation session covered four (4) separate cases, as reflected in the mediator’s invoice. (See Hovanes decl., Exh. C.) The Court will thus strike \$750.00 (i.e., $\frac{3}{4}$ of the mediator’s fee) from Plaintiffs’ costs memorandum. Plaintiffs will be allowed to recover just \$250.00 (i.e., $\frac{1}{4}$ of the mediator’s fee).

In

sum, the motion to tax costs will be granted only as to \$750.00 related to mediation. Plaintiffs will be allowed to recover their costs in the total amount of \$3,962.08. ($\$4,712.08 - \$750.00 = \$3,962.08$.)

IV.

CONCLUSION

Plaintiffs AMHM, Inc. and Armen Ghazaryan’s motion for attorneys’ fees is GRANTED in the total reduced amount of \$40,155.00.

Defendant

General Motors LLC’s motion to tax costs is GRANTED only as to \$750.00 in mediation fees. Plaintiffs AMHM, Inc. and Armen Ghazaryan are AWARDED their costs in the total amount of \$3,962.08. ($\$4,712.08 - \$750.00 = \$3,962.08$.)

Plaintiffs AMHM, Inc. and Armen Ghazaryan are
ORDERED
to give notice.

DATED: July 7, 2026

Lee
S. Arian

Judge
of the Superior Court